

SOFTWARE LICENSE AND SERVICE AGREEMENT

Agreement Reference: SLA-2024-1089 | Effective Date: November 1, 2024

Parties

Licensor: TechSolutions LLC, 123 Innovation Drive, San Francisco, CA 94102

Licensee: DataCorp Industries, 789 Enterprise Blvd, Austin, TX 78701

1. License Grant

Licensor hereby grants Licensee a non-exclusive, non-transferable, worldwide license to use the DataSync Pro v4.0 software suite ("Software") for internal business purposes only. This license covers up to 500 named users and three production environments. Reproduction for backup and disaster recovery is permitted. Sublicensing is expressly prohibited.

3. Service Level Agreement (SLA)

Service	Availability	Response Time	Resolution Time
Platform Uptime	99.9% monthly	N/A	4 hours (critical)
Critical Bugs	N/A	2 hours	24 hours
High Priority	N/A	8 hours	72 hours
Standard Issues	N/A	24 hours	10 business days
Feature Requests	N/A	5 business days	Roadmap review

4. Fees and Payment

Annual license fee: \$84,000 USD (USD 7,000/month). Invoiced quarterly in advance. Professional Services: \$195/hour (billed monthly). Fees increase by the lesser of 5% or CPI annually. Late payments accrue 1.5% monthly interest.

7. Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES. LICENSOR'S TOTAL LIABILITY SHALL NOT EXCEED FEES PAID IN THE PRIOR 12-MONTH PERIOD. These limitations shall not apply to breaches of confidentiality or intellectual property obligations.

8. Term and Termination

Initial term: 3 years from Effective Date, auto-renewing annually unless 90-day written notice is provided. Either party may terminate for cause upon 30-day written notice if material breach remains uncured. Upon termination, Licensee shall destroy all copies of the Software.